RAMBAM'S INTRODUCTION TO THE MISHNAH

# Moshe Received the Torah: How the Oral Law Was Handed Down

Rambam's Intro to the Mishnah, Part 1

**Source:** The Rambam's Introduction to the Commentary on the Mishnah (Hebrew translation of Rav Yehudah al-Harizi), opening section

**Shiur:** Part 1 of the series on the Rambam's Introduction to the Mishnah, given by Dayan Daniel Kada on Zoom, Tuesday 6 May 2025

*These notes are based on the Sofer.ai transcript of the recording.*

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## Where This Series Fits

Over the past four or five years the class has studied many of the Rambam's works:

| Studied | |
|---|---|
| **Hilchot Talmud Torah** | Laws of Torah study |
| **Hilchot Deot** | Character traits |
| **Hilchot Yesodei HaTorah** | Foundations of the Torah |
| **The 13 Principles of Faith** | |
| **Shemonah Perakim** | The introduction to Avot, winter 2024 |
| **Hilchot Teshuvah** | Recently |
| **The Letters** | The past few months |

**Now:** the Rambam's **introductions** to parts of the Talmud, "certainly until Rosh Hashanah, likely past that, because there's a lot to get through."

### The Rambam's three great works

| Work | Kind |
|---|---|
| **Mishneh Torah** | Halachic: the 14-book **codification** of the whole Torah |
| **Commentary on the Mishnah** | Halachic |
| **Moreh Nevuchim** | **Philosophical**: his magnum opus in that field |

## "More precious to me than everything I teach"

In the **Letter on Resurrection** the Rambam describes great scholars, steeped in halachah from youth, who don't know the **basic philosophical principles** of the Torah. One even doubted whether Hashem has a body. So whenever his halachic writing gives an opening, he **digresses into faith**. At the end of his commentary on Berachot he explains:

**ואין זה מקום להביא שם הדבר הזה, לולי אשר כוונתי כשיבוא זכר דבר בעניין האמונה לבאר בו מעט, כי יקר בעיני ללמד עיקר מעיקרי הדת ואמונה יותר מכל אשר אלמדהו.**

This isn't the place for it, but my purpose, whenever something touches on faith, is to explain a little, **because teaching one principle of faith is more precious to me than anything else I teach.**

The same habit shows in the Mishneh Torah, which often ends a section with an idea to think about.

## The four great "digressions"

| | Where | What it covers |
|---|---|---|
| 1 | **Introduction to Avot** (*Shemonah Perakim*) | Character and basic philosophy: **already studied** |
| 2 | **Introduction to Chapter 10 of Sanhedrin** (*Perek Helek*) | **כל ישראל יש להם חלק לעולם הבא**: what earns and what forfeits Olam HaBa, and the **13 Principles** |
| 3 | **Introduction to the Mishneh Torah** | Mainly the **transmission** of Torah |
| 4 | **Introduction to the Mishnah** | **The whole concept of Rabbinic law**: **this series** |

**The plan:** the Introduction to the Mishnah over **May, June and early July**; then the short **Introduction to the Mishneh Torah**, which links neatly; then, after Sukkot, through the winter, **Perek Helek** and the principles of faith.

## Why this matters so much

The Introduction to the Mishnah answers the questions we usually take for granted:

- How do we know there **is** an Oral Torah?

- Why should we trust what the **Sages** said?

- What is the **status of the Talmud**?

- **Why do the Sages argue so much**, all the way through the Mishnah and Talmud? (Intellectual, halachic disputes, "not the political kind")

- What are **aggadah** and **midrash**?

- What are a **Mishnah, baraita, Tosefta, Talmud**?

"I promise you, if we study this properly, you'll come out with such a clear understanding of the Oral Law, of rabbinic arguments, of midrash. **If I had ten things my son must do before he goes to yeshivah, this would be one of them.** You can't go to yeshivah and not know this. Unfortunately I only learned it much later in life, and so many questions I had in yeshivah would have been answered."

### About the text

- The Commentary on the Mishnah was the Rambam's **first** Jewish work, written **between about 20 and 23**, and corrected throughout his life (we see this in the manuscripts). "Remarkable, when you think what he writes here, at such a young age."
- Written in **Arabic**, so the masses could understand it; translated into Hebrew by different people for different parts. This introduction was translated by **Rav Yehudah al-Harizi**, the text used in class. ("Not the best text. Next week we'll use a different one.")

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## Part 1: Every Mitzvah Came With Its Explanation

**דע כי כל מצוה שנתן הקדוש ברוך הוא למשה רבינו עליו השלום, נתנה לו בפירושה.**

Know that every mitzvah Hashem gave Moshe was given **with its explanation**: He would tell him the mitzvah, and then its explanation and meaning.

### How Moshe taught each mitzvah (from the Gemara, Eruvin 54b)

| Step | Who comes in | Where they sit |
|---|---|---|
| 1 | **Aharon** alone; Moshe teaches him the mitzvah and its explanation | Aharon sits at Moshe's **right** |
| 2 | **Elazar and Itamar**, Aharon's sons (Nadav and Avihu have died) | One at Moshe's **left**, one at Aharon's **right** |
| 3 | **The 70 elders** | |
| 4 | **The whole people**, "anyone who sought Hashem" | |

Then the teaching passes down the line:

| Teacher | Teaches |
|---|---|
| **Moshe** (leaves after teaching four times) | Aharon → sons → elders → people |
| **Aharon** (leaves after teaching once) | Repeats it to all |
| **Elazar and Itamar** | Repeat it to the elders and the people |
| **The elders** | Repeat it to the people |

**The result: everyone hears it four times.**

| | From Moshe | From Aharon | From his sons | From the elders | Total |
|---|---|---|---|---|---|
| **Aharon** | 4 | | | | **4** |
| **Elazar & Itamar** | 3 | 1 | | | **4** |
| **The elders** | 2 | 1 | 1 | | **4** |
| **The people** | 1 | 1 | 1 | 1 | **4** |

Then the people **teach one another**, **write the mitzvah itself in scrolls**, and go around until everyone can read it, and learn its **explanation**, which is the **tradition** (*kabbalah*).

### Why the Rambam spells this out

He is building a picture of a **yeshivah**: the rosh yeshivah gives a shiur, the students analyse it, discuss it, go back and ask. Teaching passes from one to the next, and **people discuss and pass it on**.

### "Four times": where have we seen that?

In the **Letter on Martyrdom**, mocking the rabbi who answered without thinking: anything said in public should be examined **at least four times**, and anything written, "theoretically a thousand." For the Rambam, **you haven't properly learned something until you've learned it four times**.

### Written scroll by scroll

The Gemara debates whether the Torah was written as **one book** at the end of forty years or **מגילה מגילה**, scroll by scroll. The Rambam clearly holds **scroll by scroll**: each mitzvah was written when given, discussed, and then the next came.

**"The whole Torah was given at Sinai"**: it's "not precise" to imagine Moshe received all 613 mitzvot and their explanation on Shavuot. On Shavuot he received the **Ten Commandments**; over the next forty days, **Mishpatim**; then he taught, went back for more. **Pesach Sheni**, the **daughters of Tzelofchad**, the laws in Bamidbar came later. "A process of forty years." (The Rabbi has a separate pre-Shavuot shiur on what "given at Sinai" means, with three or four explanations.)

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## Part 2: The Example of Sukkah

The **Baraita** (Sifra, Behar):

> **מה ענין שמיטה אצל הר סיני? והלא כל התורה כולה נאמרה מסיני! אלא מה שמיטה נאמרה כללותיה ופרטותיה ודקדוקיה מסיני, אף כולן נאמרו כללותיהן ודקדוקיהן מסיני.**

Why mention Sinai with Shemittah, when the whole Torah was said at Sinai? To teach that just as Shemittah's **principles, details and fine points** came from Sinai, so did **all** the mitzvot.

("By the end of this introduction you'll know exactly what a Mishnah, baraita, Tosefta and Talmud are.")

### What the verse says, and what Moshe was told

**בסכת תשבו שבעת ימים**: "In sukkot you shall dwell seven days." **Four words.**

What is a sukkah? What does "dwell" mean: sit, live, sleep, build my bathroom there? What does "seven days" mean? Minimum size, maximum, height, materials?

| Told to Moshe orally |
|---|
| It applies to **men, not women** |
| The **sick** and **travellers** are exempt |
| The covering (*sechach*) must be something that **grows from the ground** |
| Not **wool**, not **silk** |
| Not **utensils**, even if from plants: **pillows, cushions, garments** |
| **Eating, drinking and sleeping** there is the whole obligation |
| Minimum **7 × 7 tefachim** |
| At least **10 tefachim** high |

**And so with all 613 mitzvot: the mitzvot in writing, their explanation by mouth.**

### You can't read the Torah without it

**וקשרתם לאות על ידך והיו לטטפת בין עיניך**: tie *what*, *where* on the hand ("the hand's a big place"), what are *totafot*?

**לא תעשה כל מלאכה**: "Your definition of work is different from mine. **Some people will tell you going to the gym is *melachah*.**" Moshe was told there are **39 forbidden labours**, and taught it.

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## Part 3: The Last Thirty-Seven Days

In the fortieth year, on **Rosh Chodesh Shevat**, Moshe gathered the people: **"My time to die has come. Whoever heard a halachah and forgot it, let him come and I'll repeat it. Whoever has a question, let him come and ask."**

**הואיל משה באר את התורה הזאת**. The Sifrei: **כל מי ששכח הלכה אחת יבוא וישנה, וכל מי שצריך פירוש יבוא ויתפרש.**

From **Rosh Chodesh Shevat to 7 Adar**, **37 days**, Moshe did nothing but review and clarify. Then, at **midday** on 7 Adar (**בעצם היום הזה**), he went up the mountain.

His death was "for us": **we** lost him. **משה רבנו לא מת אלא עלה ומשמש במרום**: Moshe didn't die; he ascended and serves above. "These matters are very long, and not needed here."

**Why stress all this?** The Rambam is painting **an intact transmission**: forty years of mitzvot, each taught **four times**, discussed and written, then a final chance to review everything.

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## Part 4: Where Do Disputes Come From?

After Moshe died, **Yehoshua** and his generation studied what he had left.

**כל מה שקבל משה... לא תהיה עליו מחלוקת.**

Whatever was received from Moshe: **there is no dispute about it.**

**Whatever they had not heard from the Prophet**, the **branches** of those roots, they derived **by reasoning**, through **the thirteen principles given at Sinai**. Some of these rulings were **agreed**; on some **a dispute arose**: *this one says so, that one says so*. **When a dispute arose, they followed the majority**: **אחרי רבים להטות**.

### The question

If the Torah was handed down with such care, taught four times and reviewed at the end, **why is there so much argument?**

### The Rambam's answer, "so crucial, and different from how others understood it"

**Don't make the terrible mistake** of thinking disputes arose from **"Chinese whispers"**: that as time passed, people garbled what was transmitted. "He goes very strongly against this." (More in a couple of weeks.)

| | **Roots:** given by Hashem to Moshe | **Branches:** derived later |
|---|---|---|
| **Transmission** | Moshe → Yehoshua → elders → prophets... (**Avot 1:1**) | Worked out by the Sages, and **long before** the Talmud, even in the prophets' time |
| **Dispute?** | **Never** | **Possible** |
| **Sukkah** | Eat, drink and sleep in it; the sick are exempt. "No one argues about that" (sleeping in the cold is "a medieval argument," much later) | E.g. **how high** a sukkah may be, if that wasn't given |
| **Four species** | "**etrog**. "No argument = **פרי עץ הדר** | |

**How the branches are derived:** the **thirteen principles** of **Rabbi Yishmael** (**בשלש עשרה מדות התורה נדרשת**), said every morning in Shacharit, "because **the whole Oral Law is based on this**." (Strictly there are **32**; these are the main 13.) Different principles can lead to **different conclusions**, and that's where dispute comes from. "We'll see why it **intensified** later."

**Organic growth.** "Branches grow organically from the roots. **An extrapolation can't contradict the roots.**" Recent movements that "took the roots and **reinterpreted** them": "it doesn't work like that. The roots, given from Hashem to Moshe, **cannot be changed**."

**Coming later:** if everything goes back to Sinai, what is the special category **הלכה למשה מסיני**? "We'll see."

### Question from the class

*If Israel hadn't sinned with the Golden Calf and the spies, they'd have entered the Land after a few months. Wouldn't Moshe then have received everything at Sinai?*

"No. Moshe would simply have **continued**: he'd have entered the Land, and teaching would have gone on for years more. It's **100% clear** Moshe didn't get the whole Torah on Shavuot. **Pesach Sheni, Tzelofchad, Rosh Chodesh**: just look at the Torah. **It was an ongoing process.**"

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## Part 5: A Prophet Has No Edge in Interpretation

The Rambam now takes issue with **Rav Saadia Gaon** ("those on Monday nights know his *Emunot veDeot*").

**ודע שהנבואה אינה מועילה בפירוש התורה ובהוצאת ענפי המצות בשלש עשרה מדות.**

Prophecy **gives no advantage** in interpreting the Torah or deriving the branches through the thirteen principles.

**What Yehoshua and Pinchas could do by study and reasoning, Ravina and Rav Ashi can do.**

"Ravina and Rav Ashi, a thousand or more years later, far below Yehoshua and Pinchas in prophecy: **in extrapolation they're equal.** Don't tell me *I'm a prophet, so my interpretation is better*."

**So what *is* a prophet's advantage?** "**חי נפשי**, by my life, so much depends on this principle." But first he must explain the kinds of prophecy.

### Miracles don't prove a prophet

**Most people get this wrong, even some important ones**, imagining that prophecy is established only by **a wondrous sign**: like Moshe's, like **Eliyahu** reviving **the widow's son**, like **Elisha's** miracles.

That's **Rav Saadia Gaon** (*Emunot veDeot*, essay 3): **if he can't do miracles, he's not a prophet.**

**The Rambam: "No, no, no, no. It's not true."** Eliyahu and Elisha didn't perform miracles **to prove** their prophecy, which **was already established**. They did them **because the situation needed it** (to revive a child), and Hashem fulfils the wishes of the righteous. **Prophecy is proven by something else**, which depends on dividing prophecy into two kinds: **next week**.

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## Summary

1. **The series:** the Rambam's introductions, starting with the **Introduction to the Mishnah**: the Oral Law, its transmission, the Sages' authority, why they argue, aggadah and midrash. "One of ten things before yeshivah."
2. The Rambam digresses into faith wherever he can: **"more precious to me than anything else I teach."** His four great digressions: **Avot, Perek Helek, Mishneh Torah, Mishnah**.
3. **Every mitzvah came with its explanation.** Moshe taught each one so that **everyone heard it four times**; they discussed it, **wrote it scroll by scroll**, and passed it on. **Sukkah** shows how little the verse says alone.
4. The Torah came over **forty years**, not in one day at Sinai, and in the **last 37 days** Moshe reviewed everything.
5. **What came from Sinai is never disputed.** Disputes arise only in the **branches**, derived through the **13 principles**, and were settled **by majority**. **Not "Chinese whispers."** Branches must grow **from** the roots, never against them.

6. **Prophecy gives no edge in interpretation**: **Ravina and Rav Ashi = Yehoshua and Pinchas**. **Miracles don't prove a prophet**, against **Rav Saadia Gaon**.

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## Coming Up

**Next week:** the **two kinds of prophecy**, how a prophet is verified, and **what a prophet's real advantage is**, "**חי נפשי**, so much depends on it."

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